Execution version

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PURCHASE ORDER FINANCE FACILITY AGREEMENT

between

OPENLINKS CORPORATION PROPRIETARY LIMITED
(Registration number: 2021522254)

("**Lender**")

and

Songubuntu Bay Trading Projects Pty Ltd

(Registration number: 2020/091958/07)

("**Borrower**")

GENEVIEVE VAN ZYL ATTORNEYS INC.

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1 DEFINITIONS

In this Agreement, unless the context indicates otherwise, the words and expressions set out below shall have the meanings assigned to them and cognate expressions shall have a corresponding meaning, namely:

1.1	Administration Fee	has the meaning ascribed thereto in **Schedule 1** (*Specific Terms*);
1.2	Administration Fee Payment Date	has the meaning ascribed thereto in **Schedule 1** (*Specific Terms*);
1.3	Advance	means any amount advanced by the Lender to the Borrower against the Facility;
1.4	Advance Date	means, in relation to any Advance, the date on which the Lender makes same to the Borrower;
1.5	Affiliate	of any person means any other person that, directly or indirectly, through one or more intermediaries, controls, or is controlled by, or is under common control with, such person;
1.6	Agreement	means this finance facility agreement, as amended from time to time, and includes the annexures and schedules attached hereto;
1.7	Annual	means, notwithstanding the number of days in a year, a reference to a period from (and including) one day to (but excluding) the 360th (three hundred and sixtieth) day thereafter;
1.8	Applicable Laws	means, in relation to any relevant jurisdiction, the common law and statutory law applicable in such jurisdiction, including any present or future constitution, decree, judgment, legislation, measure, requirement, order, ordinance, regulation, statute, treaty, directive, rule, guideline, practice, concession, or request issued by any

		relevant authority, governmental body, agency or department or any central bank or other fiscal, monetary, regulatory, self regulatory or other authority or agency;
1.9	Authorisations	means any authorisation, consent, registration, filing, agreement, notarisation, certificate, licence, approval, resolution, permit and/or authority or any exemption from any of the aforesaid, by, with or from any Authority;
1.10	Authority	means any government or governmental, administrative, regulatory, supervisory, fiscal or judicial authority, body, court, department, commission, tribunal, registry or any state owned or controlled authority which principally performs governmental functions (including, without limitation, the SARB);
1.11	Business Day	means any day which is not a Saturday, Sunday or a public holiday in RSA (within the meaning of the Public Holidays Act No. 36 of 1994, as amended from time to time);
1.12	Calendar Month	means each month of the Gregorian calendar;
1.13	Change in Applicable Laws	means any implementation, introduction, abolition, withdrawal or variation of any Applicable Laws or any change in any interpretation, or the introduction or making of any new or further interpretation, or any new or different interpretation by any court, governmental, revenue or other competent authority in relation to Applicable Laws;
1.14	Companies Act	means the Companies Act No. 71 of 2008, as amended from time to time;

1.15	Collection Account	has the meaning ascribed thereto in **Schedule 1** (*Specific Terms*);
1.16	Constitutional Documents	means, in respect of any company at any time, the then current and up-to-date memorandum of incorporation, certificate of incorporation and certificate to commence business or notice of incorporation and registration certificate (as applicable) of such company and in respect of any trust the trust deed constituting such trust, as amended from time to time and the letters of authority issued in respect of the trustees of such trust;
1.17	Control	means in relation to any company or similar organisation or person, the power (whether by way of ownership of shares, proxy, contract, agency or otherwise) to:
1.17.1		cast, or control the casting of, more than 50% (fifty percent) of the maximum number of votes that might be cast at a general meeting of that person;
1.17.2		appoint or remove all, or the majority, of the directors or other equivalent officers of that person; or
1.18	Discharge Date	means the date upon which all of the Indebtedness of the Borrower to the Lender under this Agreement is fully and finally repaid and discharged and there is no reasonable prospect that further Indebtedness will or may arise;
1.19	Disposal	means any sale, transfer, cession, assignment, lease, alienation, donation, renunciation, surrender, waiver, relinquishment, exchange or

		other disposal of any nature whatsoever, "**Dispose**" has a corresponding meaning and a Disposal shall be deemed to take place on the conclusion of the applicable agreement, even if that agreement is subject to conditionality;
1.20	Distribution	means, in relation to any company -
1.20.1		any payment (whether in cash or in specie) by way of interest or principal (whether in respect of an intercompany loan or otherwise), dividend, fee, royalty or other distribution or payment;
1.20.2		any repurchase, by that company in terms of section 48 of the Companies Act, of any shares of any class in its issued share capital;
1.20.3		the declaration of any dividend by that company or the making of any other distribution by that company to its shareholders or the redemption of any shares by that company; and/or
1.20.4		the making of any payment as envisaged in section 46 of the Companies Act, by that company to its shareholders, whether such payment is made in cash or in specie;
1.21	Draw Down Notice	means a draw down notice substantially in the form set out in **Schedule 2** (*Form of Draw Down Notice)* hereto or in any other form agreed to by the Lender;
1.22	Encumbrance	means:

1.22.1		any mortgage, charge (whether fixed or floating), pledge, lien, assignment or cession conferring security, hypothecation, security interest, preferential right or right of detention, however created or arising; or
1.22.2		any arrangement under which money or claims to, or for the benefit of, a bank or other account may be applied, set off or made subject to a combination of accounts so as to effect discharge of any sum owed or payable to any person; or
1.22.3		any other type of preferential agreement or arrangement (including any title transfer and retention arrangement or trust arrangement), the effect of which is the creation of a security interest,
		and "**Encumber**" shall have a corresponding meaning;
1.23	Event of Default	means any one or more of the events of default described in **clause 12** (*Events of Default*);
1.24	Facility	means the loan facility in an aggregate amount equal to the Facility Principal to be made available by the Lender to the Borrower, on the terms and conditions of this Agreement;
1.25	Facility Final Repayment Date	has the meaning ascribed thereto in **Schedule 1** (*Specific Terms*), provided that the Lender shall following a request by the Borrower be entitled in its discretion to extend the Facility Final Repayment Date from time to time by written notice to the Borrower;

1.26	Facility Outstandings	means, on any day, the aggregate of all amounts (whether in respect of Administration Fee(s), capital, interest or otherwise) then owing by the Borrower to the Lender under the Facility;
1.27	Facility Principal	has the meaning assigned to it in **Schedule 1**;
1.28	Facility Purpose	has the meaning ascribed thereto in **Schedule 1** (*Specific Terms*);
1.29	FICA	means the Financial Intelligence Centre Act No. 38 of 2001, as amended from time to time;
1.30	Finance Documents	means:
1.30.1		this Agreement;
1.30.2		the Service Level Agreement; and
1.30.3		the Security Documents;
		and "**Finance Document**" shall mean either of them, as required by the context;
1.31	Financial Half-Year Date	means each date which is the last day of the 6th (sixth) Calendar Month after the last day of a Financial Year;
1.32	Financial Year	means, in relation to any Obligor (as indicated by the context), the financial year applicable to such Obligor;
1.33	Fulfilment Date	means the date on which all of the Suspensive Conditions have been fulfilled or waived, in accordance with **clause 3** (*Suspensive Conditions*);
1.34	Further Security	means, individually and collectively, if provided (from the date on which it is so provided), all of the Security Interests and subordination undertakings

		granted in favour of the Lender by any Obligor as security for the fulfilment by the Borrower of its obligations under this Agreement, other than the Security contemplated in **Schedule 1** (*Specific Terms*) as at the Signature Date;
1.35	Goods and/or Services	means the goods and/or services detailed in the Purchase Order(s);
1.36	Group	means, collectively:
1.36.1		each Obligor;
1.36.2		any direct or indirect Subsidiary of each Obligor;
1.36.3		any partnership, unincorporated Joint Venture or trust in which any Group Entity has a direct or indirect partnership or beneficial interest of 50% or more; and
1.36.4		any company, partnership, unincorporated Joint Venture or trust which is controlled by any Group Entity;
1.37	Group Entity	means any entity forming part of the Group;
1.38	IFRS	means the International Financial Reporting Standards and the interpretation of those standards as adopted by the International Accounting Standards Board from time to time and read with the requirements of Applicable Laws;
1.39	Income Tax	means any and all taxes imposed in terms of income tax legislation, including, without limitation, the Income Tax Act No. 58 of 1962, as amended from time to time;

1.40 Indebtedness means any obligation (whether incurred as principal or as surety) for the payment or repayment of money, whether present or future, actual or contingent, including (without double counting) in respect of:

1.40.1 moneys borrowed;

1.40.2 any amount raised by acceptance under any acceptance credit facility;

1.40.3 any amount raised pursuant to any note purchase facility or the issue of bonds, notes, debentures, loan stock or any similar instrument;

1.40.4 the amount of any liability in respect of any lease or hire purchase contract which would, in accordance with IFRS, be treated as a finance or capital lease or which would be capitalised under IFRS;

1.40.5 receivables sold or discounted (other than any receivables to the extent they are sold on a non-recourse basis);

1.40.6 the amount of any liability in respect of any purchase price for assets or services the payment of which is deferred where the deferral of such price is either:

1.40.6.1 used primarily as a method of raising credit; or

1.40.6.2 not made in the ordinary course of business;

1.40.7 any agreement or option to re-acquire an asset if one of the primary reasons for

entering into such agreement or option is to raise finance;

1.40.8 any amount raised under any other transaction (including any forward sale or purchase agreement) having the commercial effect of a borrowing;

1.40.9 against or benefit from fluctuation in any rate or price (and, when calculating the value of any derivative transaction, only the mark to market value shall be taken into account which, for the avoidance of doubt, may be an addition to or subtraction from the amount of Indebtedness);

1.40.10 any counter-indemnity obligation in respect of a guarantee, indemnity, bond, standby or documentary letter of credit or any other instrument issued by a bank or financial institution;

1.40.11 all outstanding obligations in respect of any redeemable shares;

1.40.12 (without double counting) the amount of any liability in respect of any guarantee, suretyship or indemnity for any of its items referred to in **clauses 1.40.1** to **1.40.11** above;

1.41 Insolvency Event means, in relation to any person, any of the following events or circumstances (excluding, in each instance, the occurrence of an event or circumstance in respect of which the Lender has expressly waived reliance or in respect of which the Lender has given its prior written consent):

1.41.1 an application or an order is made to or by a court for its winding up, liquidation, dissolution, administration or the commencement of business rescue proceedings, other than an application which has no prospect of success and is being contested in good faith and which is withdrawn or set aside within 15 (fifteen) Business Days;

1.41.2 a binding order or binding declaration is made or a meeting of the directors or shareholders of such person is convened to consider the passing of, or a resolution is passed for the administration, commencement of business rescue proceedings, custodianship, curatorship, bankruptcy, liquidation, sequestration, winding-up, judicial management or dissolution, (and whether provisional or final) of it or its estate;

1.41.3 it is unable (or admits inability) or is deemed to be unable in terms of section 345 of the Companies Act to pay its debts generally as they fall due or its liabilities exceed its assets, fairly valued, or stops, suspends or threatens to stop or suspend payment of all or a material part of its debts or proposes or seeks to make or makes a general assignment or any arrangement or composition with or for the benefit of its creditors generally or a moratorium is agreed or declared in respect of or affecting all or a material part of its Indebtedness;

1.41.4 it takes any proceeding or other step with a view to the general readjustment, rescheduling or deferral of its Indebtedness (or any part thereof which it would otherwise be unable to pay when due) or any resolution is taken or proposed to take any such step;

1.41.5 any receiver, administrative receiver, judicial receiver, judicial manager, administrator, compulsory manager, judicial custodian, curator, trustee in bankruptcy, liquidator, business rescue practitioner or the like is appointed in respect of it or any part of its assets or it requests any such appointment;

1.41.6 if a company, its board resolves to commence business rescue proceedings or it or any of its agents, officers or employees take/s any other steps contemplated under the Companies Act in anticipation of business rescue proceedings;

1.41.7 if a company, any corporate action, legal proceedings or other similar procedure or steps are taken or threatened in relation to the appointment of a business rescue practitioner in respect of it;

1.41.8 any act which, if such act was committed by an individual, would be an act of insolvency within the meaning of section 8 of the Insolvency Act No. 24 of 1936, as amended from time to time, or any equivalent

legislation in any jurisdiction to which such person is subject;

1.41.9 such person has any Judgment made against it and it fails to:

1.41.9.1 appeal against such Judgment (if such Judgment is appealable) or to apply for the rescission thereof (if such Judgment is a default judgment) within the prescribed time limits or thereafter fails to prosecute such appeal or application (and any subsequent right of appeal or review) or ultimately fails in such appeal or application; or

1.41.9.2 satisfy such Judgment, or, if it lodges an appeal or application (as contemplated in article 0) and such appeal or application ultimately fails, it fails to satisfy such Judgment within 10 (ten) Business Days of such appeal or application failing;

1.42 Joint Venture means an association of two or more persons combining assets and/or expertise to carry out a business enterprise and having a joint proprietary interest, a joint right of control and a sharing of profits and losses and whether undertaken, without limitation, in the form of a partnership, unincorporated association, trust or incorporated entity;

1.43	Judgment	means any judgment or award;
1.44	Key Individuals	has the meaning ascribed thereto in **Schedule 1** (*Specific Terms*) (if any);
1.45	Lock-in Period	means the period commencing on the Fulfilment Date and terminating on the Discharge Date;
1.46	Material Adverse Change	means a change in circumstances or the occurrence of any event or circumstance which in the reasonable opinion of the Lender has or will, or is reasonably likely to, have a material adverse effect on:
1.46.1		the condition (financial or otherwise), business, operations, property or prospects of the Borrower or the Group taken as a whole; or
1.46.2		the ability of the Borrower or any Obligor to perform its obligations under the Finance Documents to which it is a party; or
1.46.3		the validity or enforceability of the terms of any Finance Document or the rights or remedies of the Lender under any of the Finance Documents or the effectiveness or ranking of any Security granted or purported to be granted in terms of any Security Document;
1.47	Materiality Threshold Amount	has the meaning ascribed thereto in **Schedule 1** (*Specific Terms*);
1.48	Month	means, notwithstanding the number of days in a Calendar Month, a reference to a period from (and including) one day to (but excluding) the 30th (thirtieth) day thereafter and any reference to

		"**Months**" or "**Monthly**" shall be construed accordingly;
1.49	NACM	means, within the context of any interest payable in terms of this Agreement, nominal; Annual, compounded Monthly, provided that for the avoidance of any doubt the terms "Annual" and "Monthly" shall be construed as per their definitions in terms of this Agreement;
1.50	Obligor	means, collectively:
1.50.1		the Borrower; and
1.50.2		any other person which may enter into a Security Document in favour of the Lender,
		and "**Obligor**" means either one of them, as required by the context;
1.51	Parties	means, collectively, the Lender and the Borrower and "**Party**" shall mean anyone of them as the context requires;
1.52	Penalty Interest	has the meaning ascribed thereto in **clause 13**;
1.53	Penalty Interest Rate	means ____(5% _____) basis points per Month;
1.54	Permitted Indebtedness Amount	has the meaning ascribed thereto in **Schedule 1** (*Specific Terms*);
1.55	Potential Event of Default	means any event or the existence of any circumstance which would be (with the expiry of a remedy period, the giving of notice or the making of any determination under this Agreement or any combination thereof) an Event of Default;

1.56	Purchase Orders	means purchase orders generated from secured firm contracts in terms of the Service Level Agreement, which record the Goods and/or Services which the Borrower wishes to sell and/or perform (whichever applicable) and which documents detail the purchasing process and "**Purchase Order**" shall have a corresponding meaning;
1.57	Rand/ZAR	means the lawful currency of RSA;
1.58	RSA	means the Republic of South Africa;
1.59	SARB	means the RSA Reserve Bank;
1.60	Service Level Agreement	means the service level agreement entered into between the Lender and the Borrower, on or around 16 August 2024 ;
1.61	SC End Date	has the meaning ascribed thereto in **clause 3.1**;
1.62	Security	means, individually and collectively, all of the Security Interests and subordination undertakings granted in favour of the Lender by any Obligor as security for the fulfilment by the Borrower of its obligations under this Agreement, as contemplated in **Schedule 1** (*Specific Terms*), and thereafter also including Further Security (if any);
1.63	Security Documents	means the documents recording the terms and conditions of the Security and "**Security Document**" means either of them, as required by the context;
1.64	Security Interest	means any agreement or arrangement having the effect of creating a security interest or right of possession, including any mortgage, charge (whether fixed or floating), pledge, lien, lease,

		cession, cession in *securitatem debiti*, right of retention, right of set-off or claim (but excluding any right of set-off, consolidation, merger or combination of accounts arising in favour of a banker by operation of law), hypothecation, assignment, security interest, surety, title retention, trust arrangement, preferential arrangement or encumbrance whatever, however created or arising;
1.65	Signature Date	means the date upon which all the Parties hereto have signed this Agreement, or in the event of them having signed this Agreement on different dates, the date of the last signature;
1.66	Subsidiary	means a subsidiary as defined in section 1(3) of the Companies Act, save that if a company would not be a subsidiary, only because it is not a company incorporated under the Companies Act, but it is a company or other association of persons, incorporated outside RSA, then such company shall nevertheless be a "**Subsidiary**";
1.67	Supplier Account	has the meaning ascribed thereto in **Schedule 1** (*Specific Terms*);
1.68	Suretyship(s)	means the suretyship agreement(s) to be entered into contemporaneously with this Agreement between the Key Individual(s) and the Lender, in terms of which *inter alia* the Key Individual(s) guarantee the Borrower's complete and punctual performance in terms of this Agreement;
1.69	Surviving Provisions	means this **clause 1**, **clause 3** *(Suspensive Conditions)* and **clauses 21** *(Domicilium)* to **33** *(Signature)* (both inclusive);

1.70	Suspensive Conditions	means the suspensive conditions contained in **clause 3.1**;
1.71	Tax	means all present and future taxes, Income Tax, levies, imposts, duties, charges, fees, deductions and withholdings and any penalties thereon imposed or required by any governmental, fiscal or other authority and "**Tax**" and "**Taxation**" shall be construed accordingly;
1.72	VAT	means value-added tax charged and levied in terms of the VAT Act and any other indirect tax additionally imposed;
1.73	VAT Act	means the Value-Added Tax Act No. 89 of 1991, as amended from time to time;
1.74	Warranties	means the representations and warranties set out in **clause 9.1.3** (*Representations and Warranties*); and
1.75	Warranty Date	means the Signature Date, the Fulfilment Date and each date thereafter until the Discharge Date.

2 BACKGROUND

2.1 **WHEREAS** it is recorded that the Borrower may, from time to time, require cash flow to do the work that is listed on a Purchase Order.

2.2 **AND WHEREAS** the Borrower wishes to borrow against a Facility from the Lender for the purposes of funding same, and the Lender has agreed to make same available to the Borrower for said purposes.

2.3 **NOW WHEREFORE** this Agreement records the provisions, terms and conditions regarding the aforementioned and certain matters ancillary thereto.

3 SUSPENSIVE CONDITIONS

3.1 The implementation of this Agreement and accordingly the Lender's obligation to make the Facility available to the Borrower is, save for the Surviving Provisions which will be of immediate force and effect, subject to the fulfilment of the following conditions (or the waiver of such Suspensive Conditions in terms of **clause 3.4**), in form and substance satisfactory to the Lender, by no later than **5 (five) Business Days** from the Signature Date, or such later date acceptable to the Lender, as advised to the Borrower in writing ("**SC End Date**"):

3.1.1 receipt by the Lender of each of the Finance Documents signed in form and substance satisfactory to the Lender and each Finance Document has become unconditional in accordance with its terms (other than any condition therein requiring this Agreement to have become unconditional) and all and any documents which are required to be delivered under each Finance Document prior to the Advance Date have been delivered;

3.1.2 receipt by the Lender of a copy of the Constitutional Documents of each Obligor other than a natural person in form and substance satisfactory to the Lender and certified as a true copy of the current version of such documents by an appropriate officer or agent of the Obligor;

3.1.3 receipt by the Lender of written confirmation satisfactory to the Lender, that the Borrower has engaged the dedicated services of the Key Individual for the entire Lock-in Period, upon written terms and conditions agreed to by the Borrower and the Key Individual;

3.1.4 receipt by the Lender of documentary evidence to the satisfaction of the Lender, that any shareholder loans provided to the Borrower have been subordinated to any Indebtedness of the Borrower to the Lender in terms of this Agreement;

3.1.5 the Lender having received a tax clearance certificate in respect of the Borrower;

3.1.6 receipt by the Lender of all such documents relating to each Obligor as may be required by it in relation to compliance with FICA and all other 'know your client' Applicable Laws to the satisfaction of the Lender;

3.1.7 any Authorisations required to effect any transaction contemplated in the Finance Documents (including without limitation SARB approval, if applicable) have been obtained and are not subject to any conditions which are not acceptable to the Lender (in its discretion);

3.1.8 receipt by the Lender of written advice from an advisor to its satisfaction, that any Security and/or Security Document which is governed by a jurisdiction other than RSA, is legally valid and binding to the full extent of its purpose;

3.1.9 receipt by the Lender of a copy, certified a true copy by a duly authorised officer of each Obligor that is not a natural person, of a resolution of the board of directors or trustees, as the case may be, of each such Obligor approving the entry into and performance of its obligations under each Finance Document to which it is party and giving specified officials of such Obligor the power to approve the execution of the Finance Documents to which it is party (and all documents required to be delivered thereunder) and to perform all acts required of such Obligor thereunder and in order to render the same unconditional; and

3.1.10 receipt by the Lender of a certificate duly signed on behalf of each Obligor confirming the names of the authorised signatories of each Obligor and containing their specimen signatures, all in form and substance acceptable to the Lender.

3.2 The Borrower shall use its reasonable commercial endeavours to procure the fulfilment of the Suspensive Conditions as soon as possible after the Signature Date. Unless the Suspensive Conditions are fulfilled by no later than **17h00** South African time on the SC End Date, the Lender shall not be obliged to make the Facility available to the Borrower and the Facility shall be cancelled and not be available for drawdown.

3.3 If the Lender certifies by written notice to the Borrower that all of the Suspensive Conditions have been fulfilled or waived, then all of the Suspensive Conditions shall for all purposes be deemed to have been fulfilled (or waived as the case may be) on the date upon which such notice is given.

3.4 The Suspensive Conditions have been inserted in this Agreement for the benefit of the Lender. The Lender may accordingly, in its absolute discretion on or before the SC End Date advise the Borrower by written notice (each such notice, a "**Waiver Notice**") that the Lender has waived one or more of the Suspensive Conditions. Such Waiver Notice shall either be:

3.4.1 without further stipulations, in which event the Suspensive Condition(s) waived in the Waiver Notice shall cease to be of any force and effect and the Borrower shall not be obliged to procure the fulfilment of such Suspensive Condition(s); or

3.4.2 with further stipulations, in which event the Waiver Notice shall specify a date by which the Borrower shall be obliged to procure the fulfilment of such terms of the applicable Suspensive Conditions as the Waiver Notice may stipulate, and the Borrower shall be obliged to procure such fulfilment by such date, failing which the Borrower shall be deemed to have committed an Event of Default.

4 RECORDAL REGARDING SERVICE LEVEL AGREEMENT

4.1 The Parties record that in terms of the Service Level Agreement, the Borrower may enter into Purchase Orders which require facilitation through the granting of a Facility by the Lender, and that at the Fulfilment Date, the Borrower is thus indebted to the Lender for the Facility Principal.

4.2 It is recorded that the Lender has at all times duly performed all of its obligations in terms of the Service Level Agreement.

4.3 Notwithstanding any provision to the contrary contained in this Agreement or any other Finance Document, it is agreed that this Agreement is not intended to novate, replace or supersede the Service Level Agreement, which shall remain a legally binding document. However, in respect of any third parties

other than the Borrower, the Lender shall in its absolute discretion be entitled to avail itself of any guarantee or other Security Interest granted in favour of the Lender by any person or entity as security for the obligations of the Borrower in terms of the Service Level Agreement and if the Lender is successful in doing so, then any amount recovered shall reduce the Borrower's Indebtedness to the Lender under the Facility commensurately.

5 THE FACILITY

5.1 The Lender hereby makes the Facility available to the Borrower, upon the terms and conditions of this Agreement.

5.2 The Borrower shall be entitled to draw down against the Facility Principal from time to time.

5.3 If the Borrower requires an Advance as contemplated in **clause 5.2**, the Borrower shall deliver an originally signed Draw Down Notice to the Lender at its address at its address set out in **clause 21** (*Domicilium*) by no later than 2 (two) Business Days prior to the proposed Advance Date, unless otherwise accepted/confirmed by the Lender in writing;

5.3.1 the aforesaid Draw Down Notice shall stipulate:

5.3.1.1 the amount of the required Advance; and

5.3.1.2 the Advance Date on which the Borrower requires that Advance, provided that such Advance Date shall be a Business Day; and

5.3.2 notwithstanding anything to the contrary contained herein the Lender shall not be obliged to advance any amount to the Borrower if an Event of Default or a Potential Event of Default has occurred and has not been remedied; or

5.4 Provided that the Borrower is entitled to an Advance, the Lender shall invoice the Borrower for the Advance and pay the Advance by electronic transfer directly into the Supplier Account.

6 ADMINISTRATION AND CAPITAL PAYMENT PROVISIONS

6.1 The Borrower shall pay, in arrears, the Administration Fee, to the Lender on the Administration Fee Payment Date.

6.2 The Borrower shall pay to the Lender, the capital portion of the Facility Outstandings relating to an Advance, no later than the

25 th (October 2025) day following the date on which the relevant Advance is made, unless otherwise agreed to between the Parties in writing.

6.3 Notwithstanding anything to the contrary contained in this Agreement, the Borrower shall be obliged to repay the entire Facility Outstandings in respect of the Facility on or before the Facility Final Repayment Date.

6.4 The Borrower may prepay the whole or a portion of the Facility Outstandings at any time.

7 METHOD OF PAYMENT AND GROSS UP

7.1 All payments to be made by the Borrower to the Lender in terms of this Agreement shall be made by the Borrower:

7.1.1 to the Lender on the due date for such payment;

7.1.2 by no later than 14h00 South African time on the due date for such payment; and

7.1.3 in cash without any set-off, withholding or deduction of bank commission, by means of direct bank transfers of immediately available, freely transferable, cleared funds into the Collection Account.

7.2 Save where otherwise specifically provided for herein, all payments made by the Borrower in terms of this Agreement shall be in Rand and free and clear of any Taxes, except to the extent that the Borrower is required by Applicable Laws to make payment subject thereto. If any Tax or amount in respect thereof must be deducted, or any other deductions must be made from any amounts payable or paid by the Borrower in terms of this Agreement, the

Borrower shall pay such additional amounts as may be necessary to ensure that the Lender receives a net amount equal to the full amount which it would have received had payment not been made subject to such tax or other deductions.

8 INCREASED COSTS

8.1 If by reason of:

8.1.1 any Change in Applicable Law; and/or

8.1.2 any directive, requirement, request or guidance (whether or not having the force of law but if not having the force of law, one which applies generally to a class or category of financial institutions and/or financial service companies) of any central bank or any other fiscal, monetary, regulatory or other authority in RSA or any other relevant jurisdiction; and/or

8.1.3 a requirement or a request by any statutory or monetary authority in RSA, to pay levies or other amounts whatsoever or to maintain special deposits or reserve assets, in addition to those currently paid or maintained or reserved by the Lender in RSA or any other relevant jurisdiction; and/or

8.1.4 any compliance by the Lender with any reserve, cash ratio, special deposit or liquidity requirements (or any other similar requirements) in respect of this Agreement in addition to those anticipated by the Lender in RSA or any other relevant jurisdiction; and/or

8.1.5 any compliance by the Lender with any capital adequacy or similar requirements howsoever arising in RSA or any other relevant jurisdiction in respect of this Agreement, including as a result of an increase in the amount of the capital to be allocated to the amount advanced under this Agreement or of a change of weighting of the commitment under this Agreement; and/or

8.1.6 any other event beyond the control of the Lender,

there is any increase in the cost to the Lender of the loan and/or the Facility in terms of this Agreement or a reduction of any amount received or receivable by the Lender in terms of this Agreement, or reduction in the after tax return on capital achieved by the Lender (in each case "**Increased Costs**") which is directly attributable to all or part of this Agreement and/or the Lender entering into, performing, maintaining or funding its obligations under this Agreement, then the Borrower shall on 15 (fifteen) Business Days written notice from the Lender pay to the Lender the amount of any Increased Costs incurred by the Lender as an additional fee on the Facility Final Repayment Date after such written notice, a lump sum as certified in a calculation certificate accompanying such written notice.

8.2 The Lender shall provide the Borrower with such reasonable details as to how such Increased Costs have been incurred, provided that it shall not be under any obligation under this clause to disclose any information relating to the Lender's affairs, which it in its discretion determines is confidential, commercially sensitive or the disclosure of which would be contrary to any of its usual policies and no failure to disclose any such information shall limit its rights hereunder.

8.3 A certificate signed by any manager of the Lender (whose status, authority and signature need not be proved) shall be *prima facie* evidence of the amount payable by or to the Borrower as contemplated in **clause 8.1**.

8.4 This **clause 8** shall not apply to any Increased Costs attributable to any change in the rate of Income Tax on the overall net income of the Lender.

8.5 It is recorded that the provisions of this **clause 8** shall survive the expiration or termination of this Agreement for a period of 36 (thirty six) Months thereafter.

9 INFORMATION UNDERTAKINGS

9.1 Until the Discharge Date and unless the Lender otherwise agrees in writing, the Borrower shall deliver to the Lender from the Fulfilment Date until the Discharge Date:

9.1.1 following the end of each Financial Year, the:

9.1.1.1 signed and approved audited consolidated annual financial statements of the Group; and

9.1.1.2 the signed and approved audited annual financial statements of the Borrower,

within 4 (four) Months of the end of the Financial Year of the Borrower;

9.1.2 the unaudited interim consolidated financial statements of the Group and the unaudited interim financial statements of the Borrower for the 6 (six) month period ending on each Financial Half-Year Date within three Months of such Financial Half-Year Date;

9.1.3 notification of any litigation instituted by any Obligor, save if such litigation is instituted in the ordinary course of business of the Obligor, promptly following the commencement thereof;

9.1.4 notification of:

9.1.4.1 any litigation against any Obligor which, if adversely decided, may reasonably lead to any Event of Default or Potential Event of Default; or

9.1.4.2 any Event of Default or Potential Event of Default under this Agreement,

promptly after becoming aware thereof;

9.1.5 notification if any Key Individual ceases for any reason (including, without limitation, termination of employment or death) to form part of the management of the business of the Borrower or the Group;

9.1.6 notification of:

9.1.6.1 an amendment to its Constitutional Documents;

9.1.6.2 any change to its Financial Year; or

9.1.6.3 any change in its auditors,

promptly after the adoption of any resolution or decision to effect such amendment or change;

9.1.7 such other information (including, without limitation, management accounts, debtors' lists, creditors' lists, inventory analyses, budgets and financial forecasts, and details regarding the qualifications and experience of the management members of the business of the Borrower) in relation to the management, operations and/or financial position of the Group, the Borrower, any Group Entity or any Obligor as the Lender may reasonably require from time to time and in such detail as the Lender may reasonably specify, promptly after such information is requested by the Lender and otherwise in accordance with the Lender's requests from time to time.

9.2 If the Lender requests information in respect of the Group or any Group Entities or Obligors (other than the Borrower) from the Borrower, the Borrower shall immediately request such information from the applicable Group Entities or Obligors. The Borrower shall deliver such information forthwith after the receipt of such information from the applicable Group Entities.

9.3 Until the Discharge Date, upon the occurrence of a Potential Event of Default or an Event of Default, the Borrower shall allow (and shall procure that each other Group Entity shall allow) any one or more representatives, agents and/or advisors of the Lender, upon reasonable notice, to have access to its (or such other Group Entity's) assets, books and records and to inspect the same during normal business hours.

10 REPRESENTATIONS AND WARRANTIES

10.1 The Borrower makes the representations and warranties set out in this **clause 10** to the Lender in respect of itself and, where so expressed, also in respect of the other Obligors and/or Group Entities.

10.1.1 **Going Concern**

Following the Fulfilment Date, the business of the Borrower will continue to be conducted as a "going concern", as such term is ordinarily understood in terms of the IFRS.

10.1.2 **Status**

On each Warranty Date it, and each Obligor other than a natural person:

10.1.2.1 is a company duly registered and incorporated and validly existing under the laws of RSA; and

10.1.2.2 has the power to own its assets and carry on its business as it is being conducted.

10.1.3 **Binding Obligations**

On each Warranty Date the obligations expressed to be assumed by each Obligor in terms of each Finance Document to which such Obligor is a party are legal and valid obligations binding on it and enforceable against it in accordance with the terms thereof.

10.1.4 **Non-conflict with other Obligations**

On each Warranty Date the entry into and performance by each Obligor of, and the transactions contemplated by, each Finance Document to which such Obligor is a party do not and will not:

10.1.4.1 conflict with any Applicable Laws binding on it or its assets; or

10.1.4.2 conflict with any provision of its Constitutional Documents (if such Obligor is a person other than a natural person); or

10.1.4.3 conflict with or result in a breach of any of the terms or provisions of or constitute a default under any agreement, mortgage or notarial bond or other instrument to which it is a party or which is binding upon it or any of its assets or revenues; or

10.1.4.4 exceed any limit on its powers.

10.1.5 **Power and Authority**

On each Warranty Date each Obligor has the power to enter into, perform and deliver, and has taken all necessary action to authorise its entry into, performance and delivery of each Finance Document to which such Obligor is a party and the transactions contemplated in those documents.

10.1.6 **Validity and Admissibility in Evidence**

On each Warranty Date each Obligor has and shall maintain all necessary Authorisations under Applicable Laws required:

10.1.6.1 to enable it to lawfully enter into, exercise its rights and comply with its obligations under each Finance Document to which such Obligor is a party; and

10.1.6.2 to make each Finance Document to which such Obligor is a party admissible in evidence in RSA.

10.1.7 **Full Acquaintance**

On each Warranty Date each Obligor is fully aware of and acquainted with the provisions of each Finance Document to which such Obligor is party and the meaning and effect of all such provisions.

10.1.8 **No Default, Insolvency Event or Material Adverse Change**

On each date following the Advance Date:

10.1.8.1 no Insolvency Event will have occurred in respect of it or any other Obligor or any Group Entity;

10.1.8.2 no Material Adverse Change will have occurred; and

10.1.8.3 no Event of Default or Potential Event of Default has occurred, or will occur upon the advance of any portion of the Facility Principal.

10.1.9 **No Proceedings Pending or Threatened**

On the Signature Date, the Fulfilment Date and on the Advance Date, no litigation, arbitration or administrative proceedings of or before any court, arbitral body or agency (including, but not limited to, investigative proceedings) which, if adversely determined, might reasonably be expected to constitute a Material Adverse Change have (to the best of its knowledge and belief, having made due and careful enquiry) been started or threatened against it or any other Obligor.

10.1.10 **Information**

10.1.10.1 On each Warranty Date all of the information supplied by each Obligor in connection with each Finance Document to which such Obligor is a party was true, complete and accurate in all material respects on the date such information was provided or as at the date (if any) at which it is stated.

10.1.10.2 On the Signature Date and the Fulfilment Date, it is not aware of any material facts or circumstances that have not been disclosed to the Lender in writing before the Signature Date.

10.1.11 **Compliance with Laws**

On each Warranty Date it and each other Group Entity shall comply with all Applicable Laws necessary to carry on its business.

10.1.12 **Financial Statements**

The audited consolidated financial statements delivered to the Lender before the Signature Date were:

10.1.12.1 prepared in accordance with IFRS (or such other appropriate accounting standard as the parties may agree), except to the extent expressly disclosed to the contrary therein, and comply with the requirements of the Companies Act; and

10.1.12.2 fairly present the consolidated financial condition and operations of the companies to which they relate during the relevant financial period, unless expressly disclosed to the contrary therein.

10.1.13 **Solvency**

On the Fulfilment Date and on the Advance Date, both immediately before and after the Advance, its consolidated assets (fairly valued) will exceed its consolidated liabilities.

10.1.14 **No Business Rescue Proceedings**

On the Signature Date, the Fulfilment Date and on the Advance Date:

10.1.14.1 neither its board of directors, nor of any other Group Entity, has resolved to commence business rescue proceedings, nor has any such board or any of its agents, officers or employees taken any other steps contemplated in anticipation of business rescue proceedings, in respect of itself or any other Group Entity;

10.1.14.2 no person has applied or threatened to apply to court for an order commencing business rescue proceedings in respect of it or any other Group Entity;

10.1.14.3 no corporate action, legal proceedings or similar procedure or steps have been taken or threatened, nor do any circumstances exist which are likely to give rise to steps being taken in respect of it or any other Group Entity relating to the appointment of a business rescue practitioner or similar officer of it or of any of its assets, nor has anything analogous to any of the foregoing occurred in any applicable jurisdiction.

10.1.15 **No Breach**

On the Fulfilment Date and on the Advance Date no Obligor is in material breach of or in material default under any other agreement to which such Obligor is a party or which is binding on it or any of its

assets, or under any of its Constitutional Documents, to an extent or in a manner which could reasonably be expected to give rise to a Material Adverse Change.

10.1.16 ***Pari Passu* Ranking**

On each Warranty Date, its payment obligations under the Finance Documents to which it is a party rank at least *pari passu* with the claims of all its other unsecured and unsubordinated creditors, except for obligations mandatorily preferred by law applying to companies generally.

10.1.17 **Security**

On each Warranty Date, the security created by each Security Document to which an Obligor (other than the Borrower) is party is not subject to avoidance in the event of any winding-up, dissolution or administration involving any such Obligor.

10.1.18 **Taxes**

On each Warranty Date, it and each other Group Entity has duly and punctually paid and discharged all Taxes imposed upon it or its assets or upon any other Group Entity or the assets of such Group Entity within the time period allowed without incurring penalties except to the extent that:

10.1.18.1 payment is being contested in good faith;

10.1.18.2 it (or, if applicable, the Group Entity to which such Tax applies) has maintained adequate provisions for those Taxes in accordance with IFRS (or such other appropriate equivalent accounting standard as the parties may agree); and

10.1.18.3 payment can be lawfully withheld.

10.2 The Lender has entered into the Finance Documents to which it is party on the strength of, and relying on, the representations and warranties set out in

this **clause 10**, each of which shall be deemed to be a separate representation and warranty given without prejudice to any other representation or warranty and deemed to be a material representation inducing the Lender to enter into this Agreement and the other Finance Documents to which it is party and / or to advance money to the Borrower. The rights and remedies of the Lender in respect of any breach of the representations and warranties will not be prejudiced in any way by any investigation by the Lender. The representations and warranties set out in this **clause 10** shall survive the termination of this Agreement for whatsoever reason.

11 GENERAL COVENANTS AND UNDERTAKINGS

From the Fulfilment Date until the Discharge Date, unless specifically provided for in this Agreement or any other Finance Document to which it is a party or the Lender provides its prior written consent, the Borrower hereby unconditionally and irrevocably gives the undertakings in this **clause 11** to the Lender.

11.1 Use of Advances

The amount of any Advance shall be solely used for the Facility Purpose.

11.2 Corporate Existence

Each juristic Obligor shall maintain its corporate existence in RSA according to Applicable Laws.

11.3 Finance Documents

11.3.1 Each Obligor shall comply with its obligations in terms of the Finance Documents to which it is a party.

11.3.2 Each Obligor shall not permit any variation, amendment, deletion, addition and/or alteration to and/or cancellation of any of this Agreement and/or any of the other Finance Documents to which it is a party.

11.4 Restricted Actions

11.4.1 Each Obligor shall not, without the prior written consent of the Lender:

11.4.1.1 make any changes to its Financial Year;

11.4.1.2 issue any new shares;

11.4.1.3 incur any Indebtedness in favour of any third party other than Indebtedness incurred in the ordinary course of business and in any event not exceeding, in the aggregate, the Permitted Indebtedness Amount;

11.4.1.4 make any Distributions;

11.4.1.5 grant any Encumbrance over its assets to any person other than the Lender, other than Encumbrances existing prior to the Signature Date and in any event any assets which are encumbered by the Security;

11.4.1.6 Dispose of any fixed assets in excess of the Materiality Threshold Amount;

11.4.1.7 Dispose of the whole of the greater part of its assets or undertaking;

11.4.1.8 Dispose of any assets to any person (including, without limitation, a Group Entity or an Affiliate) other than:

11.4.1.8.1 in the ordinary course of business; or

11.4.1.8.2 if not in the ordinary course of business, on such arms' length terms as may be approved in writing by the Lender.

11.4.2 Each Obligor shall not:

11.4.2.1 enter into any transactions with any person other than on an arms' length basis; or

11.4.2.2 act in any manner which would contravene its Constitutional Documents.

11.5 **Taxes**

11.5.1 It shall pay and discharge all Taxes and other liabilities payable by or assessed upon it when due.

11.5.2 It shall duly file all Tax returns containing information required by Applicable Laws to be contained therein, shall maintain its tax residence in RSA and shall not surrender or dispose of any tax credit, loss, relief or allowance to any person.

11.6 **Compliance with Applicable Laws**

It shall comply with all Applicable Laws necessary to carry on its business.

11.7 **Authorisations**

It shall procure and/or maintain all necessary Authorisations required under any Applicable Laws to enable it to perform its obligations under this Agreement and the other Finance Documents to which it is party and to ensure the legality, validity, enforceability and admissibility in evidence of such Finance Documents.

11.8 **Books and Records**

It shall maintain its books and records as required by Applicable Laws.

11.9 **Insurances**

11.9.1 The Borrower shall take out insurances with such reputable short-term insurer as may be acceptable to the Lender in respect of all the Borrower's assets purchased or produced with the proceeds of the Advances or over which any Security Interest has been granted to the Lender, including without limitation credit guarantee insurance, all risk marine and all risk cover. Such insurances shall to the extent possible, note the Lender as first loss payee and shall insure such assets at their replacement value (or such other basis of insurance as the Lender may agree to in writing) and shall serve as insurances

against the risk of fire, storm, theft and water damage and such additional risks as the Lender may from time to time require by written notice to the Borrower. The Borrower shall keep the insurance in full force and effect and furnish the Lender quarterly with documentary proof of the obtaining and maintaining, by it, of the insurances (such documentary proof, an "**Insurance Confirmation**"). Should the Borrower fail to obtain such insurances or pay any of the insurance premiums on the due date thereof in breach of this undertaking, then the Lender shall be entitled to obtain such insurances or pay such premiums and to recover from the Borrower all costs and expenses so incurred (which shall be payable by the Borrower immediately on demand) and/or to debit same against the Facility Outstandings.

11.9.2 To the extent applicable:

11.9.2.1 the Borrower is hereby given notice of its entitlement to a free choice in connection with its obligations under this Agreement in terms of section 43 of the Short Term Insurance Act No. 53 of 1998 (as amended) ("**STIA**");

11.9.2.2 the Borrower warrants that it has read and understood this section of the STIA;

11.9.2.3 by its signature to this Agreement, the Borrower confirms in writing that :

11.9.2.3.1 it received prior written notice of the provisions of section 43 of the STIA and its entitlement to the freedom of choice referred to in such section;

11.9.2.3.2 it has exercised its freedom of choice; and

11.9.2.3.3 it was not subject to any coercion, or inducement as to the manner in which it exercised such freedom of choice.

11.10 **FICA**

It shall promptly on request by the Lender supply to the Lender any documentation or other evidence which is reasonably requested by the Lender (whether for the use of the Lender or any prospective cessionary) to enable the Lender or any prospective cessionary to carry out and comply with the requirements they may have under FICA.

12 EVENTS OF DEFAULT

12.1 Each of the events or circumstances set out in this **clause 12.1** is an Event of Default (each of which shall be severable and distinct from the others and whether or not caused by any reason whatsoever outside the control of the Borrower or the relevant Obligor).

12.1.1 **Non-payment**

The Borrower does not pay on the due date any amount payable pursuant to a Finance Document unless its failure to pay is caused by administrative or technical error and payment is made within 3 (three) Business Days of its due date.

12.1.2 **Other obligations**

An Obligor fails to perform or breaches any of its covenants, obligations, undertakings, representations or warranties under any Finance Document to which it is party (other than those referred to in **clause 12.1.1**).

12.1.3 **Misrepresentation**

Any representation or statement made or deemed to be made by an Obligor in any Finance Document to which it is party or any other document delivered by or on behalf of any Obligor under or in connection with any Finance Document is or proves to have been incorrect or misleading in any material respect when made or deemed to be made.

12.1.4 **Cross default**

12.1.4.1 Any breach by any Obligor of any financial covenant given by such Obligor in any Security Document to which it is a party;

12.1.4.2 Any other default or breach by an Obligor of any obligation arising from any Security Document to which it is a party, and such breach is not remedied within the time period stipulated therefor.

12.1.4.3 Any Indebtedness of any Group Entity or an Obligor is not paid when due nor within any originally applicable grace period.

12.1.4.4 Any Indebtedness of any Group Entity or an Obligor is declared to be or otherwise becomes due and payable prior to its specified maturity as a result of an event of default (however described).

12.1.4.5 Any commitment for any Indebtedness of any Group Entity or an Obligor is cancelled or suspended by a creditor of any such Group Entity or Obligor as a result of an event of default (however described).

12.1.4.6 Any creditor of any Group Entity or an Obligor becomes entitled to declare the Indebtedness of any such Group Entity or Obligor due and payable prior to its specified maturity as a result of an event of default (however described).

12.1.4.7 No Event of Default will occur under this **clause 12.1.4** if the aggregate amount of Indebtedness or commitment for Indebtedness falling within **clauses 12.1.4.1** to **12.1.4.6** (both inclusive) is less than the Materiality Threshold Amount.

12.1.5 **Insolvency**

At any time after the Fulfilment Date, an Insolvency Event occurs in respect of any Group Entity or any Obligor.

12.1.6 **Creditors' process**

Any asset or assets of any Group Entity or any Obligor with an aggregate value in excess of the Materiality Threshold Amount (or its

equivalent in any other currency of currencies) is attached under a writ of execution.

12.1.7 **Unlawfulness**

It is or becomes unlawful for an Obligor to perform any of its obligations under the Finance Documents.

12.1.8 **Repudiation**

An Obligor repudiates a Finance Document or evidences an intention to repudiate a Finance Document.

12.1.9 **Material Adverse Change**

At any time after the Fulfilment Date, a Material Adverse Change occurs.

12.1.10 **Change in Control**

A change occurs in the Control of the Borrower or any Obligor without the prior written consent of the Lender, which consent shall not be unreasonably withheld.

12.1.11 **Key Individual**

Other than pursuant to the Lender's prior written consent, the Key Individual's employment relationship with any Obligor ceases other than due to a Termination for Cause, or a Resignation without Good Reason. For the purposes of this **clause 12.1.11**:

12.1.11.1 a "**Termination for Cause**" shall occur in the event that any Key Individual's engagements with any Obligor are terminated pursuant to an election by such Obligor arising from:

12.1.11.1.1 wilful and continued failure to substantially perform their duties;

12.1.11.1.2 a conviction of any crime involving dishonesty or any other crime which has a significant adverse effect on the business of such Obligor; or

12.1.11.1.3 a wilful engaging in illegal conduct or in gross misconduct materially and demonstrably injurious to such Obligor, by any of them; and

12.1.11.2 a "**Resignation without Good Reason**" shall occur in the event of any Key Individual's engagements with any Obligor are terminated pursuant to a resignation not under the following circumstances:

12.1.11.2.1 any decrease in base compensation, target bonus or material decrease in benefits in effect prior to the Fulfilment Date;

12.1.11.2.2 any purported termination by such Obligor of the relevant Key Individual's engagement with the Obligor for any reason other than a recognised ground in law (with the exception of mutual agreement between the Obligor and the Key Individual); or

12.1.11.2.3 any other action by the Company resulting in significant diminution in position, authority, duties or responsibilities of the Key Individual.

12.2 No Event of Default will occur if the failure to comply is capable of remedy and is remedied within:

12.2.1 10 (ten) Business Days should an event contemplated in **clause 12.1.1** occur; or

12.2.2 20 (twenty) Business Days in respect of the other events and circumstances set out in this **clause 12**,

of the Lender giving notice to the Borrower to remedy or procure the remedy of such non-compliance; or

12.3 The determination whether an event is capable or incapable of remedy, shall be made by the Lender, acting reasonably.

12.4 The Lender may without prejudice to any other rights the Lender may be entitled to at law, at any time, if an Event of Default occurs, by written notice to the Borrower:

12.4.1 terminate this Agreement forthwith; and/or

12.4.2 accelerate or demand payment of all the Borrower's Indebtedness under this Agreement which is then outstanding and whether or not it is then due for payment including, but without limitation, the entire Facility Outstandings and upon any such demand all that Indebtedness shall immediately become due and payable; and/or

12.4.3 demand that the Borrower immediately pay to the Lender all amounts for which the Lender may be contingently liable in respect of any guarantee, suretyship, bill of exchange or other instrument issued, signed, endorsed or the like by the Lender at the instance, or on behalf, of the Borrower, and the Borrower will immediately comply with that demand;

12.4.4 demand and be entitled to receive specific performance of the obligations (if any) breached by the Borrower and/or relevant Obligor; and/or

12.4.5 take all steps which it regards as desirable in order to enforce, or perfect the Security Interests created or evidenced by any one or more of the Security Documents; and/or

12.4.6 realise the security under the Security Documents; and/or

12.4.7 cancel the whole or part of the Facility.

13 PENALTY INTEREST

13.1 Should an Event of Default occur, the Administration Fee shall be increased to an amount equal to the Penalty Administration Fee, regardless of whether the Borrower has already paid the Administration Fee and/or the Administration Fee Payment Date has passed.

13.2 Furthermore, should the Borrower fail to pay any amount payable by it under this Agreement on the due date for payment, interest ("**Penalty Interest**") shall accrue on the overdue amount for the period commencing on the due date for payment and terminating on the day before such amount is paid (both before and after Judgment) at the Penalty Interest Rate.

13.3 The Penalty Administration Fee and any interest accruing under this **clause 13** shall be immediately payable by the Borrower on demand by the Lender.

13.4 Any interest arising on an overdue amount will be compounded with the overdue amount monthly in arrears, but will remain due and payable on demand.

14 INDEMNITY

The Borrower hereby indemnifies the Lender and undertakes to hold the Lender harmless against any loss or damage it may suffer arising from the breach by the Borrower of any of the warranties, representations or undertakings set out in this Agreement. The Borrower undertakes to effect payment to the Lender of any amount for which it is liable under the indemnity granted herein within 10 (ten) Business Days of receipt of written demand from the Lender.

15 CERTIFICATE

A certificate issued by a manager of the Lender as to any indebtedness of the Borrower in terms of this Agreement or any other fact relating to this Agreement shall be *prima facie* evidence of the Borrower's indebtedness to the Lender hereunder and/or such other fact for the purpose of provisional sentence or summary judgment proceedings or for any other purpose.

16 RENUNCIATION OF BENEFITS

16.1 Should the Borrower resist any claim arising out of this Agreement on the grounds that:

16.1.1 there is no reason or basis for the claim (*non causa debiti*); or

16.1.2 errors have been made in calculating the amount claimed (*errore calculi*); or

16.1.3 in the case of monies lent, no money, or less money than has been claimed, has been advanced (*non numeratae pecuniae*); or

16.1.4 no value has been received,

the onus of proving that ground or those grounds shall be on the Borrower.

16.2 The Borrower confirms that it understands the meaning of each of the defences referred to in **clause 16.1**.

17 APPROPRIATION

All payments received by the Lender in terms of this Agreement shall be appropriated firstly to costs, then interest, then fees and then to capital.

18 WAIVER OF IMMUNITY

The Borrower waives generally all immunity it or its assets or revenues may otherwise have in any jurisdiction, including immunity in respect of:

18.1 the giving of any relief by way of interdict or order for specific performance or for the recovery of assets or revenues; and

18.2 the issue of any process against its assets or revenues for the enforcement of a Judgment or, in an action *in rem*, for the arrest, detention or sale of any of its assets and revenues.

19 SET-OFF

The Borrower hereby authorises the Lender to apply any credit balance on any of the Borrower's accounts with the Lender in satisfaction of any sum due and payable to the Lender by the Borrower pursuant to this Agreement but unpaid by the Borrower, where an Event of Default has occurred. The Lender is hereby authorised to purchase with the monies standing to the credit of any such account such other currencies as may be necessary to effect such application. The foregoing shall be without prejudice and in addition to any right of set off, combination of accounts, lien, security or other right to which the Lender are at any time otherwise entitled, whether by operation of law, contract of otherwise.

20 LENDER'S POSITION

20.1 No provision of this Agreement will:

20.1.1 interfere with the rights of the Lender to arrange its affairs (Tax or otherwise) in whatever manner it thinks fit;

20.1.2 (save as expressly set out in this Agreement), oblige the Lender to disclose any information relating to its affairs (Tax or otherwise) or any computations in respect of Tax.

20.2 In no event shall the Lender be liable for any special, indirect, consequential or punitive damages and the Borrower hereby waives, releases and agrees not to sue upon any such claim for any such damages, whether or not accrued and whether or not known or suspected to exist in its favour.

21 DOMICILIUM

21.1 Each Party chooses the address set out opposite its name below as its *domicilium citandi et executandi* at which all notices, legal processes and other communications must be delivered for the purposes of this Agreement:

21.1.1	Lender:	Physical Address:	314 Cape Road, Newton Park
			Gqeberha
			6070
		Email:	venas@openlinks.co.za
21.1.2	Borrower:	Physical Address:	72 Avondale road, Kabega Park, Port Elizabeth, 6025

E-mail: songubuntutrading@gmail.com

079 369 4577

21.2 Any notice or communication required or permitted to be given in terms of this Agreement shall be valid and effective only if in writing, but it shall be competent to give notice by e-mail.

21.3 Each Party may by written notice to the other Party change its chosen address to another physical address and/or its chosen e-mail address to another e-mail address, provided that the change shall become effective on the 14th (fourteenth) day after the receipt of the notice by the addressee.

21.4 Any notice to a Party contained in a correctly addressed envelope and:

21.4.1 sent by prepaid registered post to it at its chosen physical address; or

21.4.2 delivered by hand to a responsible person during ordinary business hours at its chosen physical address,

shall be deemed to have been received, in the case of **clause 21.4.1**, on the 7th (seventh) Business Day after posting (unless the contrary is proved) and, in the case of **clause 21.4.2**, on the day of delivery.

21.5 Any notice by e-mail to a Party at its e-mail address shall be deemed, unless the contrary is proved, to have been received on the 1st (first) Business Day after it is transmitted.

22 ADDITIONAL EXPENSES

The Borrower hereby unconditionally and irrevocably undertakes to the Lender that:

22.1 it shall, from time to time within 10 (ten) Business Days of demand by the Lender, reimburse the Lender for -

22.1.1 all costs and expenses (including legal fees as between attorney and own client) plus VAT thereon, incurred in or in connection with the preservation of any of the rights of the Lender in terms of this Agreement or the other Finance Documents, including without limitation the costs associated with the registration of any Security; and

22.1.2 all costs and expenses (including legal fees as between attorney and own client) plus VAT thereon, incurred in or in connection with the enforcement of any of the rights of the Lender in terms of this Agreement or the other Finance Documents (including without limitation, all tracing fees, collection commission, valuation costs and transport costs),

including in both cases any costs and expenses relating to any investigation undertaken as to whether or not an Event of Default or a Potential Event of Default might have occurred or is likely to occur or any steps which become necessary or prudent in connection with any proposal for remedying or otherwise resolving such an Event of Default or Potential Event of Default;

22.2 it shall pay all stamp and registration duties and taxes and all other duties and taxes to which this Agreement, or any judgment given in connection herewith, is or at any time may be subject;

22.3 if the Borrower requests any amendment, waiver or consent in terms of this Agreement or any other Finance Document then it shall reimburse the Lender for all costs and expenses (including legal fees as between attorney and own client) plus VAT thereon, incurred by the Lender in responding to or complying with such request.

23 ILLEGALITY

If as a result of a Change in Applicable Laws occurring at any time after the Signature Date it is or becomes unlawful in any jurisdiction or contrary to any lawful request from or requirement of the SARB or other RSA governmental department or authority, whether or not having the force of law, for the Lender to perform any of its obligations under this Agreement, then the Lender shall promptly after becoming aware of same, notify the Borrower by way of a certificate signed by a director or

manager of the Lender (or a person of an equivalent or higher level of authority), whose appointment or designation it will not be necessary to prove to that effect and if the Lender so requires, the Borrower shall by not later than such date as the Lender shall have specified (which date may not be earlier than 20 (twenty) Business Days or such lesser period as may be prescribed by law after the date of such certificate) repay the amount owing in terms of this Agreement in full together with any and all other amounts, then due to the Lender under or in terms of this Agreement.

24 CESSION AND DELEGATION

24.1 The Lender shall be entitled to sell, pledge, cede or otherwise Dispose of any or all of its rights and obligations under this Agreement and the other Finance Documents to any person and/or to cede, assign and/or delegate any of its rights and/or obligations under this Agreement and the other Finance Documents without the consent of the Borrower. To the extent that any such cession, delegation, sale, pledge or other disposal results in a splitting of claims, the Borrower hereby irrevocably consents thereto.

24.2 The Borrower shall not be entitled to cede all or any of its rights or delegate all or any of its obligations under this Agreement to any person without the prior written consent of the Lender.

25 STIPULATIO ALTERI

No part of this Agreement shall constitute a stipulatio alteri in favour of any person who is not a party to this Agreement unless the provision in question expressly provides that it does constitute a *stipulatio alteri*.

26 GOOD FAITH AND CO-OPERATION

26.1 In the implementation of this Agreement, the Parties undertake to observe the utmost good faith and they warrant in their dealings with each other that they shall neither do nor refrain from doing anything which might prejudice the rights, assets or interests of the other of them.

26.2 The Parties undertake to co-operate with each other in all reasonable respects in order to give effect to this Agreement according to its intent and purpose.

27 CONFIDENTIALITY

27.1 "**Confidential Information**" of a Party shall mean any information disclosed by that Party to the Receiving Party (as defined below) prior to the conclusion of this Agreement, in terms of this Agreement or otherwise in connection with this Agreement.

27.2 Notwithstanding the cancellation or termination of this Agreement, no Party ("**Receiving Party**") shall, at any time after the conclusion of this Agreement, disclose to any person or use in any manner whatsoever the other Party(ies) Confidential Information or the existence and contents of this Agreement; provided that -

27.2.1 the Receiving Party may disclose the existence and contents of this Agreement to the extent required by any rules of any stock exchange by which the Receiving Party is bound; provided that no such disclosure shall be made unless the other Party(ies) ("**Disclosing Party**") has/have first approved the form thereof in writing, which approval shall not be withheld or delayed unreasonably;

27.2.2 the Receiving Party may disclose the Confidential Information of the Disclosing Party and the existence and contents of this Agreement -

27.2.2.1 to the extent required by law (other than in terms of a contractual obligation of the Receiving Party);

27.2.2.2 to, and permit the use thereof by, its directors, employees, representatives, agents and professional advisers to the extent strictly necessary for the purpose of implementing or enforcing this Agreement or obtaining professional advice or conducting its business, it being specifically agreed that any disclosure or use by any such employee, representative or adviser of such confidential or other information for any other purpose shall constitute a breach of this **clause 27** by the Receiving Party;

27.2.3 the provisions of this **clause 27** shall cease to apply to any Confidential Information of a Party which -

27.2.3.1 is or becomes generally available to the public other than as a result of a breach by the Receiving Party of its obligations in terms of this **clause 27**;

27.2.3.2 is received by the Receiving Party from a third party who did not acquire such Confidential Information subject to any duty of confidentiality in favour of the Disclosing Party; or

27.2.3.3 was known to the Receiving Party prior to receiving it from the Disclosing Party.

27.3 Each party acknowledges that the restrictions in terms of the protection of Confidential Information are reasonable and necessary to protect the other Party's legitimate business interests. Each Party acknowledges that any breach of any of the provisions of this **clause 27**, shall result in irreparable injury for which money damages could not adequately compensate. If there is a breach, then the injured Party shall be entitled, in addition to all other rights and remedies which it may have at law, to have a degree of specific performance or an injunction issued by any competent court requiring the breach to be cured or joining all persons involved from continuing the breach.

28 SUSPENSION OF LENDER'S OBLIGATIONS

If the Borrower or any other Obligor commences business rescue proceedings and the appointed business rescue practitioner suspends or cancels conditionally or unconditionally the whole, or any part or provision, of this Agreement or any other Finance Document then the Lender shall not be obliged to tender any performance or fulfil any of its obligations in terms of this Agreement, for so long as any Finance Document or any provision or part thereof, is so suspended or cancelled.

29 APPLICABLE LAW AND JURISDICTION

29.1 This Agreement will in all respects be governed by and construed in accordance with the laws of RSA.

29.2 The Lender may commence legal action or proceedings arising out of or in connection with this Agreement in the High Court indicated in **Schedule 1** (*Specific Terms*) and the Borrower irrevocably submits to the non-exclusive jurisdiction of such court and agrees that any costs awarded against it be

awarded or paid in accordance with the *de facto* scale as between attorney and own client.

29.3 The Borrower appoints any person (at the address chosen as its *domicilium citandi et executandi*) to receive for and on its behalf service of process in such jurisdiction in any legal action or proceedings with respect to this Agreement. The Borrower irrevocably waives any objection it may now or hereafter have that such action or proceeding has been brought in an inconvenient forum. The Borrower further irrevocably consents to the service of process in any such action or proceeding as contemplated in **clause 22** (*Additional Expenses*). Nothing herein shall affect the right to serve process in any other manner permitted by law. The Borrower irrevocably agrees not to claim for itself or its assets immunity from suit, execution, attachment or otherwise, to the full extent permitted by Applicable Laws.

29.4 The submission to jurisdiction in **clause 29.2** shall not (and shall not be construed so as to) limit the right of the Lender to take proceedings against the Borrower in whatever other jurisdiction the Lender considers appropriate nor shall the taking of proceedings in any one or more jurisdictions preclude the taking of proceedings in any other jurisdiction whether concurrently or not.

30 INTERPRETATION

30.1 In this Agreement, unless the context requires otherwise:

30.1.1 words importing any one gender shall include the other genders;

30.1.2 the singular shall include the plural and *vice versa*; and

30.1.3 a reference to natural persons shall include created entities (corporate or unincorporated) and *vice versa*.

30.2 In this Agreement, the headings have been inserted for convenience only and shall not be used for nor assist or affect its interpretation.

30.3 Where a clause reference is referred to in this Agreement and followed by the heading of the clause so referred, if there is any conflict between the two,

the clause reference so referred (the numerals) shall prevail in this Agreement.

30.4 Any reference in this Agreement to an enactment is to that enactment as at the Signature Date and as amended or re-enacted from time to time.

30.5 If any provision in a definition is a substantive provision conferring rights or imposing obligations on any Party, notwithstanding that it is only a definition, effect shall be given to it as if it were a substantive provision in the body of this Agreement.

30.6 When any number of days is prescribed in this Agreement, same shall be reckoned exclusively of the first and inclusively of the last day unless the last day falls on a day which is not a Business Day, in which case the last day shall be the next succeeding Business Day.

30.7 Where figures are referred to in numerals and in words, if there is any conflict between the two, the words shall prevail in this Agreement.

30.8 Unless specifically stated otherwise, whenever a specific time is referred to such time will be with reference to the time in RSA.

30.9 All of the annexures incorporated herein shall have the same force and effect as if they were set out in the body of this Agreement.

30.10 Words and/or expressions defined in this Agreement shall bear the same meanings in the annexures to this Agreement, which do not themselves, contain their own definitions.

30.11 Words and/or expressions defined in any particular clause in the body of this Agreement shall, unless the application of such words and/or expressions is specifically limited to that clause, bear the meaning so assigned to it throughout this Agreement.

30.12 The terms "**holding**", "**subsidiary**" and "**group of companies**" in relation to any company shall bear the meanings assigned to them in the Companies Act.

30.13 The *contra proferentem* rule shall not apply and accordingly, none of the provisions hereof shall be construed against or interpreted to the disadvantage of the Party responsible for the drafting or preparation of such provisions.

30.14 The *eiusdem generis* rule shall not apply and accordingly, whenever a provision is followed by the word “including” followed by specific examples, such examples shall not be construed so as to limit the ambit of the provision concerned.

30.15 A reference to any statutory body or court shall be construed as a reference to that statutory body or court as at the Signature Date and as substituted from time to time thereafter by successor statutory bodies or courts, as the case may be.

30.16 Unless specifically provided to the contrary, all amounts referred to in this Agreement are exclusive of VAT, if applicable.

30.17 The expiration or termination of this Agreement shall not affect such of its provisions if expressly provided that they will continue to apply, after such expiration or termination or which of necessity must continue to apply after such expiration or termination.

31 GENERAL

31.1 This Agreement contains the entire agreement between the Parties as to the subject matter hereof.

31.2 No Party shall have any claim or right of action arising from any undertaking, representation or warranty not included in this Agreement.

31.3 No failure by any Party to enforce any provision of this Agreement shall constitute a waiver of such provision or affect in any way that Party’s right to require performance of any such provision at any time in the future, nor shall the waiver of any subsequent breach nullify the effectiveness of the provision itself.

31.4 No agreement to vary, add to or cancel this Agreement shall be of any force or effect unless reduced to writing and signed by or on behalf of all the Parties.

31.5 It is agreed that each clause of this Agreement is severable, the one from the other, and if any clause is found to be defective or unenforceable for any reason by any competent court, then the remaining clauses shall continue to be of full force and effect.

31.6 Each Party warrants that it is acting as a principal and not as an agent for an undisclosed principal.

31.7 This Agreement shall be binding on and enforceable by and against the estates, heirs, executors, administrators, trustees, assigns, liquidators, curators, business rescue practitioners or other legal representatives, as the case may be, of the Parties.

32 INDEPENDENT ADVICE

The Parties acknowledge that they have been free to secure independent legal and other advice as to the nature and effect of all the provisions of this Agreement and that they have either taken such independent legal and other advice or dispensed with the necessity of doing so. Further, the each of the Parties acknowledges that all of the provisions of this Agreement and the restrictions herein contained have been negotiated as between it and the other Party hereto and are part of the overall intention of the Parties in connection with this Agreement.

33 SIGNATURE

33.1 This Agreement is signed by the Parties on the dates and at the places indicated below.

33.2 Any reference to "**signed**", "**signing**" or "**signature**" in this Agreement shall, notwithstanding anything to the contrary in this Agreement, be read and construed as excluding any form of electronic signature.

33.3 This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the

same Agreement as at the date of signature of the Party last signing one of the counterparts.

33.4 The persons signing this Agreement in a representative capacity warrant their authority to do so.

33.5 The Parties record that it is not required for this Agreement to be valid and enforceable that a Party shall initial the pages of this Agreement and/or have its signature of this Agreement verified by a witness.

[*page intentionally left blank – signature page to follow*]

SIGNED at on 2024

Witness: For: **OPENLINKS CORPORATION PROPRIETARY LIMITED**

_____ _____

Witness Name: Signatory Name:
Duly authorised and warranting such authority

SIGNED at on 2024

Witness: For:

_____

_____ _____

Witness Name: Signatory Name:
Duly authorised and warranting such authority